

The Corporation of the Township of Ignace

By-law 37-2021

Being a By-law to Regulate and Govern the Use of Off-Road Vehicles within the Township of Ignace

Whereas Part X.3 of the Highway and Traffic Act, 1990, Chapter 8, Section 191.8(1) provides that no person shall drive an off-road vehicle on a highway except in accordance with the regulations and any applicable Municipal By-laws, 1999, c. 12, Sched. R, s.17.

Whereas Section 191.8(3) of the Highway Traffic Act, R.S.O. 1990, Chapter H8, as amended (the "HTA"), provides that the Council of a Municipality may pass By-laws permitting the operation of off-road vehicles with three (3) or more wheels and low-pressure bearing tires on any highway within the Municipality that is under the jurisdiction of the Municipality, or any part or parts of such highway.

Whereas Ontario Regulation 316/03 passed under the authority of the HTA, defines an "All-terrain Vehicle" (ATV) and provides the regulations governing the operation of ATVs upon highways.

Whereas in the Council of the Corporation of the Township of Ignace has deemed it necessary to adopt a By-law that permits ATVs to regulate and govern the operation of off-road vehicles within the Township of Ignace.

Now Therefore the Council of the Corporation of the Township of Ignace enacts as follows:

1.0 Definition

OR shall mean "off-road" vehicle for the purposes of this By-law.

1.1 No person shall operate an off-road vehicle on a Municipal highway unless that off-road vehicle is prescribed in Ontario Regulation 316/03, which are as follows:

<u>OR Vehicle</u>	<u>Requirements</u>
All-terrain Vehicle	1. Has four (4) wheels, the tires of which are all in contact with the ground. 2. Has steering handlebars. 3. Has a seat that is designed to be straddled by the driver. 4. Is designed to carry: a) A driver only and no passengers b) A driver and only one (1) passenger if the vehicle: I. Has one (1) passenger seat that is designed to be straddled by the passenger while sitting facing forward behind the driver. II. Is equipped with foot rests for the passenger that are separate from the foot rests for the driver.
Multi-purpose Off-road Utility Vehicle	1. Has four (4) or more wheels, the tires of which are all in contact with the ground.

Recreational Off-highway Vehicle

2. Has a steering wheel for steering control.
3. Has seats that are not designed to be straddled.
4. Has a minimum cargo capacity of 159 kilograms.
 1. Has four (4) or more wheels, the tires of which are all in contact with the ground.
 2. Has a steering wheel for control.
 3. Has seats that are not designed to be straddled.
 4. Has an engine displacement equal to or less than 1,000 cubic centimeters.

1.2 The Township will not make decisions about whether or not a particular type of off-road vehicle fits the definition under Ontario Regulation 316/03. Drivers are required to contact the Ministry of Transportation or some other authority to determine if a certain vehicle fits within the above-noted definitions.

2.0 No person shall operate an off-road vehicle that is not in accordance with the requirements of Ontario Regulation 316/03.

3.0 No person shall operate an off-road vehicle along or upon any sidewalk, pathway, or footpath used or set apart for the use of pedestrians and forming part of any highway, bridge, boulevard or other means of public transportation.

4.0 No person shall operate an off-road vehicle on the property of any school, church, health centre, or municipal property.

5.0 No person shall operate an off-road vehicle on a Township highway at a speed greater than 20 kilometres per hour.

6.0 No person shall operate any type of off-road vehicle, including an ATV, on any private property without the prior consent by the person(s) who own the property or the person(s) that resides there.

7.0 No person shall engage in, or organize an off-road vehicle race without the prior written consent of the Municipality.

8.0 No person shall engage in, organize a parade, display show, or similar event, solely involving off-road vehicles without the prior written consent of the Municipality.

9.0 No person(S) shall disobey the direction or signal of a Municipal By-law Enforcement Officer to stop the off-road vehicle that he/she is operating under the authority of this By-law.

10.0 No person shall interfere with, obstruct or impede a Municipal By-law Enforcement Officer who is in the process of enforcing the provisions of this By-law.

11.0 Exception

The prohibitions set out Section(s) 1 thru 7 of this By-law do not apply to restrict the operation of an ATV by that person(s), or under those circumstances that are listed in Schedule "A" attached.

12.0 Enforcement

12.1 Any Municipal By-law Enforcement Officer, or Provincial Police Officer may enforce the provisions of this By-law. He or she must identify him/herself as such, and provide any relevant information relating to his/her authority to the person(s) making enquiries at the time of inspection or enforcement.

12.2 A Municipal By-law Enforcement Officer, or Provincial Police Officer, in the course of his/her duties in enforcing this By-law, may direct or signal any person operating any type of ORV, including an ATV, to stop the vehicle so that he or she may approach it safely.

13.0 Penalty

Every person(s) who contravenes any provision in this By-law is guilty of an offence and, if convicted is liable to a fine as provided for in the Provincial Offences Act. See attached Schedule "B" for the set fine schedule.

14.0 Severability

If any part or part of a provision of this By-law is declared by any court or tribunal of competent jurisdiction to be illegal or inoperative, in whole or in part, or inoperative in particular circumstances, the balance of the By-law or its application in any other circumstances, shall not be affected and shall continue to be in full force and effect.

15.0 Repeals

This By-law hereby rescinds By-law 53.2015.

16.0 Effective Date

This By-law shall come into force and take effect upon approval by the Attorney General or his designate of the Set Fines established under this By-law.

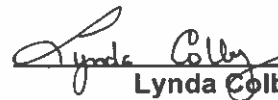
Read a First and Second Time this 21st Day of June 2021.

Read a Third and Finally Passed this 21st Day of June 2021.





Penny Lucas, Mayor



Lynda Colby, Clerk

Schedule “A”
(As per By-law 37.2021)

Person(s) Exempt from By-law 37.2021

1. Any Municipal By-law Enforcement Officer, or Provincial Police Officer while acting in course of his/her duties as an Officer.
2. The Fire Chief, Emergency Services, member of the Ignace Volunteer Fire Department, while acting in course of his/her duties.
3. Any Hydro One employee, and their contractors while acting in course of his/her duties.
4. Any Ministry of Natural Resources and Forestry employee while acting in the course of his/her duties.
5. Any Township of Ignace Municipal employee that is acting in course of his/her duties.
6. Any person or group that has authorization, in writing, in advance from the Municipality to operate off-road vehicles in prohibited or restricted areas, provided he/she operates the off-road vehicle in accordance with any conditions imposed by the Municipality. Failing to operate in accordance with the conditions is operation without permission or authorization.

Schedule "B"
(As per By-law 37.2021)

Set Fine Schedule as Provided by Part I of the Provincial Offences Act

<u>Item Number</u>	<u>Short Form Wording</u>	<u>Provision Creating or Defining Offence</u>	<u>Set Fine</u>
1	Operating an ORV, including an ATV, in a prohibited area.	Section 3.0, 4.0 and Schedule "A"	\$150.00
2	Operating an ORV, including an ATV, on private property without prior consent by the owner/occupier.	Section 6.0	\$150.00
3	Engaging in or organizing a race that includes an ORV without permission/approval of the Municipality.	Section 7.0	\$150.00
4	Engaging in or organizing a parade, contest or event solely involving OVRs without permission/approval of the Municipality.	Section 8.0	\$150.00
5	Failure to stop when signaled by a Municipal By-law Officer.	Section 9.0	\$200.00
6	Interference or obstruction of a Municipal By-law Enforcement Officer when performing his/her duties.	Section 10.0	\$200.00

Note: the penalty provision for the offences indicated above is Section 13.0 of By-law 37.2021, a certified copy of which has been filed.